

## IN CONTEXT

### FOCUS

#### Military law

### BEFORE

**1474** Burgundian knight Peter von Hagenbach is the first commanding officer to be convicted of war crimes.

**1920** The League of Nations sets up the first international court, the Permanent Court of International Justice (PCIJ).

**1943** Leaders of the Allied powers resolve to put Nazi war criminals on trial.

### AFTER

**1961** Nazi Adolf Eichmann is caught in Argentina, tried in Jerusalem, and executed.

**1987** Klaus Barbie is tried and convicted of deporting Jews.

**2017** The Yugoslav war crimes tribunal closes after convicting Yugoslav president Slobodan Milošević, Radovan Karadžić, and General Ratko Mladić.

**T**he Nuremberg trials were a series of 13 court cases held in Nuremberg, Germany, between 1945 and 1949. Their purpose was to bring the leaders of the defeated Nazi regime to internationally recognized justice in the aftermath of World War II. Other similar trials followed, including a series held in Tokyo against Japanese war leaders, but the Nuremberg trials set the precedent.

Nazi leader Hermann Göring, one of the defendants, dismissed the Nuremberg trials as “victor’s justice”—but they were an

A new charge of **“crimes against humanity”** is created for the **Nuremberg trials**.

**Lawyers for the Nazis** argue that they cannot be tried for **crimes that didn’t exist when they were committed**.

**The Nazis’ actions are so appalling that justice would not be served if they went unpunished.**

There is a **precedent for trying war criminals** in the **Hague Conventions** of 1899 and 1907.

important landmark in the establishment of an international system of justice. They set a precedent for dealing with crimes of genocide and crimes against humanity across national borders and became a symbol of victory over warmongering and atrocity.

### Coming retribution

Before the war had even come to an end, the Allied leaders began discussing what to do with the Nazi leaders. There was a widespread desire to bring justice and punishment to those who had caused so much suffering and death. Even more pressing was the need for retribution for the horrors of the Holocaust. As

### The emaciated survivors

discovered in Nazi concentration camps at the end of the war fueled the need to punish the architects of the Holocaust.

evidence of the appalling fate of Jews under the Nazis came to light, the Allies resolved, under the four-part Moscow Declarations of 1943, to punish those responsible. One document, the Declaration on Atrocities, was signed by US president Franklin D. Roosevelt,

